

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

JOHNNY GRIMA,

Plaintiff,

-against-

THE CITY OF NEW YORK, New York City Police
Department Sergeant MATTHEW ZONIN, Badge No.
610, New York City Police Department Officers John
and Jane Doe 1-10, and Department of Sanitation
Workers JOHN AND JANE ROE 1-10.

Defendants.

Index No. _____

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorney, at his address stated below, an Answer to the attached Complaint.

If this Summons was personally served upon you in the State of New York, the Answer must be served within 20 days after such service of the Summons, excluding the date of service.

If the Summons was not personally delivered to you within the State of New York, the Answer must be served within 30 days after service of the Summons is complete as provided by law.

If you do not serve an Answer to the attached Complaint within the applicable time limitation, a judgment may be entered against you, by Plaintiff, for the relief demanded in the Complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, County of the Bronx. This action is brought in Bronx County because that is where Plaintiff resides.

Dated: July 5, 2023
New York, New York

Respectfully submitted,



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COUNTY OF THE BRONX

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**VERIFIED COMPLAINT AND
DEMAND FOR JURY TRIAL**

Plaintiff Johnny Grima, by and through his attorneys at Beldock Levine & Hoffman, LLP,
alleges as follows:

PRELIMINARY STATEMENT

1. Mr. Grima brings this civil rights action under the constitution and laws of the State of New York, seeking to recover for injuries caused by Defendants' violations of his rights.

2. Mr. Grima's rights were violated when employees of the New York City Department of Sanitation ("DSNY") and officers of the New York City Police Department ("NYPD") repeatedly raided homeless camps in the Lower East Side of Manhattan where Mr. Grima lived, assaulted Mr. Grima, destroyed his property, and unlawfully arrested him.

3. Mr. Grima now seeks redress for the substantial injuries he suffered as a result of raids, including (i) compensatory damages for his physical injuries, psychological and emotional distress, destroyed property, and other financial loss caused by the illegal actions of Defendants; (ii) punitive damages to deter such intentional and reckless deviations from well-settled constitutional law; and (iii) such other and further relief, including attorneys' fees and costs, as this Court deems just and equitable.

JURISDICTION AND VENUE

4. This action is brought for violations of Mr. Grima's rights under the Constitution of the State of New York, and the laws of the State and City of New York.

5. Mr. Grima has satisfied all of the prerequisites for filing his state-law claims.

6. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx, because Mr. Grima currently resides in Bronx County and Defendants regularly and substantially conduct business in the Bronx. C.P.L.R. § 503(a)–(b).

PARTIES

7. At the time of the incidents described below, Mr. Grima was a resident of New York County. Mr. Grima is now a resident of the Bronx.

8. Defendant the City of New York (the "City") is a municipal entity created and authorized under the laws of the State of New York.

9. The City is authorized by law to maintain a police department, and does maintain the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers because those risks attach to the public consumers of the services provided by the NYPD.

10. The City is also authorized by law to maintain a sanitation department, and does maintain the DSNY, which acts as its agent in the area of sanitation and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a sanitation department and the employment of sanitation department employees because those risks attach to the public consumers of the services provided by the DSNY.

11. NYPD Sergeant Matthew Zonin, Badge No. 610, is and was at all relevant times, an officer, employee, and agent of the NYPD. Sergeant Zonin was the arresting officer in the May 4, 2023 incident described below.

12. NYPD Officers (“P.O.”) John and Jane Does 1–10 are and were at all relevant times, officers, employees, and agents of the NYPD.

13. DSNY Workers (“S.W.”) John and Jane Roes 1–10 are and were at all relevant times, officers, employees, and agents of DSNY.

14. The true names, ranks, and shield numbers of Defendants P.O. Does 1–10, and the names of Defendants S.W. Roes 1–10, are not currently known to Mr. Grima.¹ However, they are employees or agents of the NYPD and DSNY, respectively. Accordingly, upon their request, they are entitled to representation in this action by the New York City Law Department (“Law Department”) pursuant to New York State General Municipal Law § 50-k. The Law Department is thus put on notice that (a) Mr. Grima intends to name those individuals as Defendants in an amended pleading once their true identities becomes known to Mr. Grima and (b) the Law Department should immediately begin preparing their defenses in the action.

15. In this Complaint, Sergeant Zonin, C.O. Does 1–10, and S.W. Roes 1–10 are collectively referred to as the “Individual Defendants.”

16. The Individual Defendants are being sued in their individual capacities.

17. At all times relevant to this case, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD and DSNY, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and

¹ By identifying some Defendants as “John Does” and “Jane Does,” Mr. Grima is making no representations as to the gender of those Defendants.

on behalf of the NYPD or DSNY at all relevant times, with the power and authority vested in them as officers, agents, and employees of the NYPD or DSNY, and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD or DSNY.

18. The Individual Defendants' acts complained of below were carried out intentionally, recklessly, with malice, and in gross disregard to Mr. Grima's rights.

19. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described below and lending their physical presence, support, and authority of their offices to one another.

STATEMENT OF FACTS

20. At the time of the incidents described below, Mr. Grima was an unhoused New Yorker.

21. He resided primarily in two homeless camps in the Lower East Side of Manhattan.

22. The first was on the public sidewalk outside of 605 E. 9th Street, out front of the Charas Building (the "Charas Homeless Camp").

23. The second was on the public sidewalk directly bordering Tompkins Square Park at E. 10th St. (the "Tompkins Square Park Homeless Camp").

First Incident

24. On April 6th, 2022, Mr. Grima was living at the Charas Homeless Camp.

25. At approximately 8:00 a.m., Individual Defendants arrived at the homeless camp.

26. At approximately 9:30 a.m., employees with the Department of Homeless Services ("OHS") arrived, as well.

27. Mr. Grima repeatedly told the Individual Defendants and the OHS employees that he wanted help getting permanent housing.

28. The Individual Defendants and OHS employees told Mr. Grima that they could not help him get permanent housing.

29. Around 3 p.m., the Individual Defendants began to arrest the residents of the Charas Homeless Camp.

30. The Individual Defendants violently arrested Mr. Grima while he was still inside his tent.

31. Mr. Grima clearly identified his belonging and repeatedly told the Individual Defendants that he wanted his property vouchered.

32. Legal advocates on the scene also repeatedly asked the Individual Defendants to voucher Mr. Grima's belongings.

33. The Individual Defendants, however, stated that they knew nothing about vouchering personal belongings.

34. Mr. Grima's items were not vouchered.

35. Instead, the Individual Defendants threw Mr. Grima's belongings, including his tent and bedding, into the back of a garbage truck and destroyed it.

36. After his arrest, Mr. Grima was detained for hours and charged.

37. Mr. Grima had to appear at several court hearings as a result of the arrest.

38. All of the charges against Mr. Grima were ultimately dropped.

39. As a result of the violent altercation and arrest, Mr. Grima suffered serious injuries, including spinal injuries to his back and neck, wrist injuries, damage to his hearing, post-traumatic stress disorder ("PTSD"), and other physical, emotional, and economic injuries.

Second Incident

40. On April 16, 2022, Mr. Grima was living in the Tompkins Square Park Homeless Camp.

41. At approximately 8:30 a.m., Individual Defendants arrived, taped off the area surrounding the Camp, and began threatening to physically assault its residents, including Mr. Grima.

42. Mr. Grima and the other residents started packing their belongings with help from supportive community members.

43. As they were doing so, however, the Individual Defendants suddenly tried to seize Mr. Grima's tent.

44. Mr. Grima repeatedly told the Individual Defendants that the tent was his personal property.

45. The Individual Defendants, however, threatened to assault and arrest Mr. Grima if he did not give them his tent.

46. After numerous threats, Mr. Grima relinquished his tent.

47. The Individual Defendants took Mr. Grima's tent, threw it in the back of a garbage truck, and destroyed it.

Third Incident

48. On April 20, 2022, Mr. Grima was living in the Charas Homeless Camp.

49. Early that morning, Individual Defendants arrived and began threatening to arrest the Charas Homeless Camp residents, including Mr. Grima.

50. Mr. Grima attempted to remove his tent and his belongings from the area in order to save his belongings and avoid arrest.

51. Instead of allowing Mr. Grima to gather his belonging and depart, however, the Individual Defendants violently tackled Mr. Grima as he tried to leave.

52. Once again, the Individual Defendants unlawfully seized and destroyed Mr. Grima's belongings, including a tent, bedding, and clothing that he had in his tent.

53. After his arrest, Mr. Grima was held for more than eight hours and charged.

54. Mr. Grima had at appear at several court hearings as a result of this arrest.

55. All of the charges against Mr. Grima were ultimately dropped.

56. As a result of the violent altercation and arrest, Mr. Grima suffered serious injuries, including spinal injuries to his back and neck, wrist injuries, damage to his hearing, PTSD, and other physical, emotional, and economic injuries.

Fourth Incident

57. On April 22, 2022, Mr. Grima was living in the Tompkins Square Park Homeless Camp.

58. On that day, without any prior notice, Individual Defendants approached the Camp to seize and destroy all of the residents' belongings.

59. The Individual Defendants violently arrested Mr. Grima, dropping him on his head in the process.

60. As a result, Mr. Grima had serious neck pain and, after being released, went to the hospital.

61. The Individual Defendants seized Mr. Grima's belonging, including two of his tents.

62. At the scene, the Individual Defendants said that they would voucher Mr. Grima's belongings.

63. But when Mr. Grima went to try to retrieve his belongings, the Individual Defendants said that they would not return his belongings because they were evidence.

64. The Individual Defendants never returned Mr. Grima's belongings.

65. After the arrest, Mr. Grima was detained for hours and charged.

66. Mr. Grima had to appear at several court hearings as a result of this arrest.

67. All of the charges against Mr. Grima were ultimately dropped.

68. As a result of the violent altercation and arrest, Mr. Grima suffered serious injuries, including spinal injuries to his back and neck, wrist injuries, damage to his hearing, PTSD, and other physical, emotional, and economic injuries.

Fifth Incident

69. On May 4, 2022, Mr. Grima was living at the Charas Homeless Camp.

70. Around 9 a.m., Individual Defendants arrived to destroy the camp and arrest its residents.

71. The Individual Defendants arrested Mr. Grima, using numerous forms of unreasonable force, including choking him with his own sweatshirt.

72. During the arrest, the Individual Defendants also lost Mr. Grima's key to a storage facility where he had personal property, causing him to lose possession of all of that property.

73. The Individual Defendants also seized Mr. Grima's tent and did not tell him what was done with it.

74. Mr. Grima and numerous legal advocates on the scene pleaded with the Individual Defendants to save and voucher Mr. Grima's belongings.

75. Instead, however, the Individual Defendants threw all of Mr. Grima's belongings in the back of a garbage truck and destroyed them.

76. After the arrest, Mr. Grima was detained for hours and charged.

77. Mr. Grima had to appear at several court hearings as a result of this arrest.

78. All of the charges against Mr. Grima were ultimately dropped.

79. As a result of the violent altercation and arrest, Mr. Grima suffered serious injuries, including spinal injuries to his back and neck, wrist injuries, damage to his hearing, PTSD, and other physical, emotional, and economic injuries.

Sixth Incident

80. On May 8, 2022, Mr. Grima was living in the Tomkins Square Park Homeless Camp.

81. That day, Individual Defendants raided the Camp.

82. The Individual Defendants ripped open Mr. Grima's tent and violently arrested him.

83. The Individual Defendants threw Mr. Grima's personal belongings in a garbage truck and destroyed them.

84. After the arrest, Mr. Grima was detained for hours and charged.

85. Mr. Grima had to appear at several court hearings as a result of this arrest.

86. All of the charges against Mr. Grima were ultimately dropped.

87. As a result of the violent altercation and arrest, Mr. Grima suffered serious injuries, including spinal injuries to his back and neck, wrist injuries, damage to his hearing, PTSD, and other physical, emotional, and economic injuries.

**FIRST CLAIM
ASSAULT AND BATTERY**

88. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

89. By the actions described above, Defendants did inflict assault and battery upon Mr. Grima. The acts and conduct of Defendants were the direct and proximate cause of injuries and damages to Mr. Grima and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

90. As a result of the above, Mr. Grima was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM
FALSE ARREST AND FALSE IMPRISONMENT

91. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

92. By the actions described above, Defendants falsely arrested Mr. Grima, or caused Mr. Grima to be falsely arrested, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injuries and damages to Mr. Grima and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

93. As a result of the above, Mr. Grima was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

94. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

95. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Mr. Grima. The acts and conduct of Defendants were the direct and proximate cause of injuries and damages to Mr. Grima and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

96. As a result of the above, Mr. Grima was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM
NEGLIGENCE

97. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

98. Defendants, jointly and severally, negligently caused injuries, emotional distress, and damages to Mr. Grima. The acts and conduct of Defendants were the direct and proximate cause of injuries and damages to Mr. Grima and violated his statutory and common law rights guaranteed by the Constitution and laws of the State of New York.

99. As a result of the above, Mr. Grima was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM
MALICIOUS PROSECUTION

100. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

101. Despite knowing that probable cause did not exist to arrest, initiate, and continue the prosecution against Mr. Grima, Defendants intentionally, recklessly, and with malice caused Mr. Grima to be arrested, charged, and held in custody.

102. The criminal cases against Mr. Grima were terminated in his favor when all charges against him were dropped.

103. As a direct and proximate result of Defendants' actions, Mr. Grima was prosecuted, imprisoned, had to defend against the charges against him through multiple court appearances, and suffered the other grievous and continuing damages and injuries described above.

SIXTH CLAIM
CONVERSION

104. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

105. By confiscating Mr. Grima's property from him at the time of his arrests and detentions, and then intentionally and maliciously refusing to return his property despite his unambiguous claims of right, Defendants have interfered, and are continuing to interfere, with Mr. Grima's property rights, to Mr. Grima's exclusion.

106. As a result of the above, Mr. Grima has been deprived of the use and enjoyment of his property without legal justification, resulting in costs, expenses, emotional anguish, and other damages and injuries.

107. Defendants' acts and conduct were the direct and proximate cause of Mr. Grima's injuries and damages and violated his statutory and common law rights guaranteed by the Constitution and laws of the state of New York. Defendants are therefore liable for the conversion of all of Mr. Grima's property that has not been returned to him undamaged.

SEVENTH CLAIM
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807

108. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

109. Mr. Grima's right to be free from unreasonable searches and seizures was violated by the conduct of the Defendants.

110. Defendant City is liable as the employer of the Defendants under New York City Administrative Code § 8-803(b).

111. Qualified immunity is no defense to this claim.

112. As a result of the above unconstitutional conduct, Mr. Grima was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty and property.

113. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

EIGHTH CLAIM
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK

114. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

115. The conduct of the Individual Defendants alleged above occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as New York City police officers or sanitation workers, and/or while they were acting as agents and

employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to Mr. Grima pursuant to the state common law doctrine of respondeat superior.

116. As a result of the above, Mr. Grima was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING

117. Mr. Grima realleges and incorporates the above allegations as if fully set forth here.

118. Defendant City negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the Individual Defendants were the direct and proximate cause of injury and damage to Mr. Grima and violated his statutory and common law rights guaranteed by the Constitution and laws of the State of New York.

119. As a result of the above, Mr. Grima was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

120. Mr. Grima demands a trial by jury in his action on each and every one of his damages claims.

DEMAND FOR RELIEF

Mr. Grima demands judgment against the Defendants individually and jointly and prays for the following relief:

- a. Compensation for violations of his rights, pain, suffering, destruction of property, mental anguish, and humiliation; and
- b. Punitive damages against the Individual Defendants;

- c. Compensation for attorneys' fees, costs, and disbursements for this action; and
- d. Such other, further, and different relief as to the Court may deem just and proper.

Dated: July 5, 2023
New York, New York

Respectfully submitted,



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Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

I, Keegan Stephan, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for Plaintiff.
2. I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, or other pertinent information contained in my files.
3. This verification is made by me because Plaintiff does not reside in the County where I maintain my office.

Dated: July 5, 2023
New York, New York

Respectfully submitted,



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